

STATE OF NEW YORK

8043--C

Cal. No. 460

2025-2026 Regular Sessions

IN ASSEMBLY

April 22, 2025

Introduced by M. of A. SIMONE, REYES, BURDICK, LAVINE, SIMON, WOERNER, BORES, ROMERO, GRIFFIN, R. CARROLL, LUNSFORD, WILLIAMS, KASSAY, KELLES, LASHER, COLTON, GALLAGHER, SCHIAVONI, LUPARDO, VALDEZ, GONZALEZ-ROJAS, SEAWRIGHT, ROSENTHAL, HEVESI, MORENO, TAPIA, KAY, McMAHON, GLICK, LEVENBERG -- Multi-Sponsored by -- M. of A. STECK -- read once and referred to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Environmental Conservation in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported and referred to the Committee on Codes -- reported from committee, advanced to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the environmental conservation law, in relation to octopus farming

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 13-0316 of environmental conservation law is
2 amended by adding a new subdivision 3 to read as follows:

3 3. Prohibition. Notwithstanding any provision of law to the contrary,
4 no person shall engage in the operation of a marine hatchery or in the
5 off-bottom or on-bottom culture of any species belonging to the order
6 Octopoda unless for scientific or educational purposes, as authorized
7 pursuant to section 11-0515 of this chapter, and unrelated to the culti-
8 vation of the species for human consumption.

9 § 2. Section 71-0925 of the environmental conservation law is amended
10 by adding a new subdivision 7-d to read as follows:

11 7-d. If the violation was an act prohibited by subdivision three of
12 section 13-0316 of this chapter, or any rule or regulation promulgated

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 thereunder, not to exceed one thousand dollars for each day in violation
2 thereof.
3 § 3. This act shall take effect on the sixtieth day after it shall
4 have become a law. Effective immediately, the addition, amendment
5 and/or repeal of any rule or regulation necessary for the implementation
6 of this act on its effective date are authorized to be made and
7 completed on or before such effective date.